

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine**

Hearing Date and Time: August 20, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name Case Number	Tentative
1.	<i>DeJesse vs. MRV Marketing, LLC</i> <i>2024-01426311</i>	CONTINUED TO JANUARY 25, 2027 , as stated in the August 17, 2026 Minute Order.
2.	<i>In Re: Verdell</i> <i>2026-01577324</i>	Before the court is the unopposed motion of petitioner DRB Capital, LLC (Petitioner) seeking an order approving the transfer of structured settlement payment rights by and between payee and real party in interest Jahara Verdell (Payee) and Petitioner pursuant to California Insurance Code section 10134 et seq. Specifically, the parties seek court approval of the proposal for Payee to transfer the right to receive a single lump sum payment of \$305,250 on August 24, 2027, in exchange for a present lump sum payment of \$274,010.71. The future payment of \$305,250.00 has a discounted present value of \$287,113.05, which means Payee will receive 95.44 percent of that value and this proposed transaction has an equivalent interest rate of 8.98 percent. The Court, having reviewed and considered the petition, together with all other such relevant matters, finds there is good cause to approve the transfer of structured settlement payment rights by and between Payee and Petitioner. The court makes the following findings as required by Insurance

		Code sections 10137 and 10139.5(a): (1) the transfer is fair and reasonable and in the best interest of Payee, taking into account the welfare and support of his dependents; (2) Payee has been advised in writing by Petitioner to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived, in writing, the opportunity to receive the advice; (3) Petitioner has complied with the notification requirements pursuant to Insurance Code section 10139.5(f)(2), Petitioner has provided Payee with a disclosure form that complies with Insurance Code section 10136, and the transfer agreement complies with Insurance Code sections 10136 and 10138; (4) the transfer does not contravene any applicable statute or the order of any court or other government authority and otherwise complies with the requirements of Insurance Code section 10134, et seq.; (5) Payee understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Insurance Code section 10136; and (6) Payee understands and does not wish to exercise his right to cancel the transfer agreement. Based on the foregoing, the petition is GRANTED. Petitioner's counsel is ordered to submit a proposed order approving the transfer consistent with the requirements of Insurance Code section 10134 et seq. Petitioner's counsel is ordered to give notice of this ruling.
3.	<i>Spruce Grove, Inc. vs. The Southern California Injury Law Group</i> 2026-01568223	Before the court is a petition to confirm contractual arbitration award filed by petitioner Spruce Grove, Inc. (Petitioner) against respondents The Southern California Injury Law Group, Christopher K. Monelt, Mia Mogavero, and Alazar Berhe (collectively, Respondents). For the reasons set forth below, the petition is GRANTED IN PART and DENIED IN PART. As an initial matter, the court declines to consider Respondents' very untimely opposition. A response to a petition to confirm an arbitration award shall be served and filed within 10 days after service of the petition. (Code Civ. Proc., § 1290.6.) Here, Respondents were served with the petition on June 5, June 12, and June 18, 2026. (ROA 10, 12, 14, 16.) A response to the petition therefore was due no later than June 28, 2026. Respondents' opposition filed on August 12, 2026, thus was untimely. No explanation is provided for the untimely filing. Additionally, no proof of service was filed showing Petitioner was served with a copy of the opposition. The court therefore declines to consider the opposition papers. (Cal. Rules Ct., rule 3.1300(d).)

		A petition to confirm a contractual arbitration award must (1) set forth the substance of or have attached a copy of the agreement to arbitrate; (2) set forth the names of the arbitrators; and (3) set forth or have attached a copy of the award and the written opinion of the arbitrators, if any. (Code Civ. Proc., §1285.4.) If a petition to confirm an arbitration award "is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.) If the award is confirmed, an enforceable judgment is entered with the same force and effect as a judgment in a civil action. (Code Civ. Proc., §1287.4.) Respondent Alazar Berhe is a former employee of Petitioner who brought multiple actions against Petitioner that were ordered to arbitration. The other three Respondents are the attorneys and law firm that represented respondent Alazar Berhe in court and in the arbitration. By this petition, Petitioner seek to confirm the arbitrator's October 3, 2025 order granting Petitioner's motion for terminating sanctions based on Respondents' conduct during the arbitration. The petition is GRANTED as to the request to confirm the arbitrator's order/award imposing terminating sanctions against respondent Alazar Berhe and dismissing all his claims against Petitioner with prejudice. Petitioner has satisfied the requirements of Code of Civil Procedure section 1285.4 by attaching a copy of the arbitration against between respondent Alazar Berhe and Petitioner, setting for the arbitrator's name (Hon. Holly Kendig (Ret.)), and attaching a copy of the arbitrator's order/award. The petition, however, is DENIED as to the monetary sanctions Petitioner seeks against respondent Alazar Berhe and it is DENIED IN ITS ENTIRETY as to the other three Respondents. Although the petition seeks to confirm the alleged award of \$22,588.92 in monetary sanctions against all Respondents, the arbitrator's October 3, 2025 order did not require Respondents to pay Petitioner \$22,588.92 as Petitioner contends. The October 3, 2025 order granted Petitioner's motion for terminating sanctions and ordered the proceedings dismissed with prejudice. (See Attachment 8c to Petition, p. 11.) Although the order discussed the prior monetary sanctions orders that were imposed against
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		Respondents as part of its statement of the underlying facts, the October 3, 2025 order itself did not award those sanctions to Petitioner. Petitioner does not even attach the prior monetary sanctions orders to its petition. Moreover, Petitioner cites no authority showing the court may properly confirm a contractual arbitration award where three of the four Respondents were not signatories to the contract containing the arbitration agreement and were not named as claimants or respondents in the arbitration proceedings. Here, only Petitioner and respondent Alazar Berhe are signatories to the arbitration agreement. (See Attachment 4b to Petition.) Perhaps there is an argument to be made the attorney Respondents who were not signatories to the arbitration agreement submitted to the arbitrator's authority by voluntarily appearing and participating in the arbitration proceeding, but no authority is cited to establish that or any other basis for making and confirming an award against these nonsignatories. Accordingly, the petition is GRANTED as to the order granting terminating sanctions against respondent Alazar Berhe and dismissing all his claims against Petitioner, but the petition is DENIED in all other respects, including with regarding to any monetary sanctions or any other relief against the remaining three Respondents. Counsel for Petitioner is ordered to give notice of this ruling.
4.	<i>First-Citizens Bank & Trust Company vs. Mana Family Holdings LLC</i> <i>2026-01573260</i>	Before the court is the unopposed motion for order to permit inspection under Civil Code section 2929.5, subdivision (d), filed by petitioner First-Citizens Bank & Trust Company (Petitioner) regarding the real property located at 2301 East Orangethorpe Avenue, Fullerton, California 92831 (Property). For the reasons set forth below, the motion is GRANTED. Petitioner has shown (1) it is a secured lender of the Property, (2) it has commenced nonjudicial foreclosure proceedings, and (3) it has been unable to enter the Property without a breach of the peace for the purpose of determining the existence, location, nature, and magnitude of any past or present release or threatened release of any hazardous substance on the Property. (See Janes Decl., ¶¶ 7-8, 14-18, 20-21; Exhs. 1-4, 9-10; Strickland Decl., ¶¶ 3-4.) Petitioner also has shown in compliance with Civil Code section 2929.5, subdivision(b), Petitioner provided the requisite twenty-four hours' notice to respondents Mana Family Holdings LLC, Veterans Towing LLC, Ahmad Mofid, Nima Mofid, Mahtab Mofid, and Mohammad Mofid to

		request access to the Property, but Petitioner has been unable to obtain access to the Property. (Janes Decl., ¶ 17, Exh. 10; Simon Decl., ¶ 2.) Petitioner thus has shown it is entitled to the relief requested under Civil Code section 2929.5, subdivision (d). Based on the foregoing, the motion is GRANTED. The court will sign the proposed order submitted by Petitioner. Counsel for Petitioner is ordered to give notice of this ruling.
5.	<i>Khaytovich vs. Locascio</i> 2022-01239428	Before the court is the motion of attorney Charles Gomez or Gomez Law, APC, to be relieved as counsel of record for defendant Brandon LoCascio (Client). The motion was properly served on all parties and Client, it establishes grounds for the withdrawal of counsel, and otherwise complies with the requirements of California Rules of Court, rule 3.1362. Accordingly, the motion is GRANTED. The order relieves counsel shall be effective upon counsel filing with the court a proof of service showing the signed order granting the motion was served on Client. Counsel is ordered to submit a revised proposed order that accurately reflects all future dates. Counsel further is ordered to give notice of this ruling to all parties and Client.
6.	<i>In Re: Monarch Bay Terrace Property Owners Association</i> 2026-01547636	Before the court is the continued hearing on the "Petition to Approve Amendment to Consolidate Homeowners Association CC&R's by Reducing Required Voting Percentage [Corp. Code § 7515]" filed on February 13, 2026, by petitioner Monarch Bay Terrace Property Owners Association (Petitioner). As more fully set forth below, the petition is DENIED. The service issues identified by the court in its May 21, 2026, tentative ruling have been remedied. The court will thus proceed with the merits of the petition. "If for any reason it is impractical or unduly difficult for any corporation to call or conduct a meeting of its members, delegates or directors, or otherwise obtain their consent, in the manner prescribed by its articles or bylaws, or this part, then the superior court of the proper county, upon petition of a director, officer, delegate or member, may order that such a meeting be called or that a written ballot or other form of obtaining the vote of members, delegates or directors be authorized, in such a manner as the court finds

	fair and equitable under the circumstances.” (Corp. Code, § 7515(a).) The purpose of Corporations Code section 7515 is to “overcome membership voting apathy.” (<i>Fourth La Costa Condominium Owners Assn. v. Seith</i> (2008) 159 Cal.App.4th 563, 583, citing <i>Greenback Townhomes Homeowners Assn. v. Rizan</i> (1985) 166 Cal.App.3d 843, 849.) Petitioner has not shown the failure to obtain the necessary super-majority number of votes to approve the proposed amendment is due to voter apathy or that it is otherwise impractical or unduly difficult to obtain the necessary consent from the members, rather than simply opposition to the proposed amendment. In the past, Petitioner has been able to obtain the necessary votes to pass amendment on two occasions. As for the proposed amendment, Petitioner conducted two votes with the first vote resulting in 53.5% of owners voting and the most recent vote resulting in 63.5% of owners voting. This does not appear to signal voter apathy and indeed appears to show Petitioner’s efforts at voter outreach are producing results. Moreover, in its briefs, Petitioner states a failure to vote is the equivalent of a no vote, but then also argues a failure to vote is a sign of voter apathy. (See Suppl. Reply p. 4:17-19.) It cannot be both and Petitioner has failed to show it is the latter. It also is worthy of note, the first vote involved a proposed amendment that included mandatory dues, but the second vote involved a proposed amendment that dropped mandatory dues and left that question for a subsequent vote. That change and the increase in votes between the first and second vote supports an inference at least some of the owners who are not voting are not voting because they oppose mandatory dues. Petitioner states it does not believe any further effort to obtain votes would markedly improve voter turnout, but this seems to be based entirely on speculation. Indeed, the court is not convinced the roughly 35% who did not vote did so due to apathy as opposed to opposition. As all parties note, the association at issue is a unique one in that it is actually seven separate sub-associations of varying size, a super-majority of each sub-association is necessary (as opposed to a super-majority of the entire association), and membership and dues are voluntary. This is a unique dynamic that must be considered in evaluating whether the
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		lack of necessary votes is due to apathy or undue difficulty in getting votes. As an aside, some parties point to the varying sizes of the sub-associations and the need for a super-majority of each as essentially providing the small sub-associations with a veto. That argument, however, is a red herring. Tract No. 6265 is the smallest sub-association with just six members, but five of those six members voted and voted in favor of the amendments. (Petitioner at p. 7.) As such, it was one of only two sub-associations that reached the required threshold. Moreover, in deciding this petition, the court is not empowered change the vote requirements because the court thinks the proposed changes are good changes or reasonable changes. Rather, the relevant code section only authorizes the court to change the voting requirements if it is convinced the failure to obtain the necessary super-majority number of votes to approve the proposed amendment is due to voter apathy or that it is otherwise impractical or unduly difficult to obtain the necessary consent from the members. The court is not so convinced. Petitioner states the alternative to consolidation of the CC&Rs, which is to enact amendments that would apply only to some of the seven tracts, would produce “a patchwork of CC&Rs that would be very difficult to administrate and make governance more difficult.” But no evidence is offered to support this claim. Based on the above, the Petition is DENIED. Petitioner’s request for judicial notice is GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code § 452, subd. (c); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Counsel for Petitioner is ordered to give notice of this ruling.
7.	<i>G. vs. Santa Ana Unified School District</i> 2026-01576260	Before the court is the petition of petitioner N.G., by and through his guardian ad litem Margarita Flores (Petitioner), for relief from Government Code section 945.4 pursuant to Government Code section 946.6. As more fully set forth below, the petition is GRANTED. On December 19, 2026, Petitioner mailed by certified mail, return receipt requested, a notice of claim to respondent

	Santa Ana Unified School District (District), Office of the Superintendent. Although this claim was timely submitted, Petitioner's attorney's office addressed and mailed the claim to the District at "1601 E. 17th Street" when it should have been addressed and mailed to the District at "1601 E. Chestnut Ave." (See Exh. 1.) It appears the District never received this claim. Upon discovering this mistake, Petitioner's counsel sent another claim to District on January 23, 2026. (See Exh. 2.) This second claim letter also included a section clearly identified as an application to present a late claim. On February 10, 2026, the District sent Petitioner's counsel a letter stating the claim was being returned without any action taken because it was not timely submitted within six months. The District told Petitioner's counsel it needed to submit an application for leave to present a late claim even though the claim submitted on January 23 included an application for leave to submit a late claim. (Exh. 3.) As such, it appears the District did not read all the January 23 claim. Because the January 23 claim clearly included an application for leave to present a late claim and the District took no action on it within 45 days, the application for leave to present a late claim is deemed denied. (Gov. Code §911.6(c).) Government Code section 946.6 provides as follows: "(a) If an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4. . . . "(b) The petition shall show each of the following: "(1) That application was made to the board under Section 911.4 and was denied or deemed denied. "(2) The reason for failure to present the claim within the time limit specified in Section 911.2. "(3) The information required by Section 910. "The petition shall be filed within six months after the application to the board is denied or deemed to be denied pursuant to Section 911.6. "(c) The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in
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	subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that one or more of the following is applicable: “(1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4. “(2) The person who sustained the alleged injury, damage, or loss was a minor during all of the time specified in Section 911.2 for the presentation of the claim. . . .” Based on the facts described above, Petitioner argues both of the grounds quoted above apply in this case. In response, the District argues Petitioner may not rely on the first ground—i.e., mistake, inadvertence, surprise, or excusable neglect—because that ground was not cited or described in the application to file late claim Petitioner submitted on January 23, 2026. In support of this contention, the District cites <i>Lincoln Unified School Dist. v. Superior Court</i> (2020) 45 Cal.App.5th 1079, 1094-1095 (<i>Lincoln</i>). <i>Lincoln</i> holds the reason for the late claim identified in the application to the governmental entity must be the same. (<i>Ibid.</i>) <i>Lincoln</i> goes on to explain the reason for this rule as follows: “[t]he purpose of allowing applications for leave to file late claims is to give the public entity an opportunity to examine petitioners’ reasons for not filing timely claims and to allow the public entity to grant the applications where the reasons are meritorious, thereby eliminating unnecessary litigation.” [Citation.] The public entity has no opportunity to examine a petitioner’s reasons if they are not provided or if they are subsequently changed.” (<i>Ibid.</i>) Here, that rationale does not apply because the District did not examine the reason Petitioner offered in the January 23 claim and application to submit late claim. Indeed, as stated above, the District did not even acknowledge the application to submit a late claim, but rather simply rejected the claim and told Petitioner to submit an application for a late claim. Hence, there is a significant question whether the <i>Lincoln</i> rule even applies here. To the extent relief from the late claim is available to Petitioner based on mistake, inadvertence, surprise, or excusable neglect, the court finds Petitioner has established a sufficient explanation. Petitioner’s counsel provides a
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		declaration explaining the mistake regarding the address and Petitioner’s counsel then acted promptly to address the mistake within approximately one month and within less than one year after the claim arose. Nonetheless, regarding of whether relief based on mistake, inadvertence, surprise, or excusable neglect under section 946.6(c)(1) is available, Petitioner is entitled to relief under section 946.6(c)(2) based on his minority throughout the period from claim accrual through submission of the application for leave to submit late claim (and through the time of the hearing and then some). Under section 946.6(c)(2) the court is required to grant Petitioner relief as long as Petitioner make the application for relief within a reasonable time. The District argues Petitioner is not entitled to relief under section 946.6(c)(2) because, where the delay results from the unexplained and inexcusable inattention of the claimant’s own representatives rather than from the claimant’s minority itself, the policy underlying the minority provisions is not served by relief. To support this contention, the District cites <i>Greene v. State of California</i> (1990) 222 Cal.App.3d 117, 121-122. <i>Greene</i>, however, did not involve a request for relief based on minority under section 946.6(c)(2) and the delay in <i>Greene</i>, was several months, not the one-month period between Petitioner’s initial December 19th claim and the January 23rd application for relief. More importantly, unreasonable delay by a minor’s parents or attorney (as opposed to delay attributable to the minor) will not bar a late claim application filed within one year of accrual of the cause of action—i.e., the parents’ and attorney’s neglect or ignorance is not imputed to the minor. (<i>Hernandez v. County of Los Angeles</i> (1986) 42 Cal.3d 1020, 1029; <i>J.M. v. Huntington Beach Union High School Dist.</i> (2017) 2 Cal.5th 648, 652; <i>Rousseau v. City of San Carlos</i> (1987) 192 Cal.App.3d 498, 501-502.) Based on the foregoing, the petition is GRANTED. Petitioner has 30 days to file suit against the District. [Gov. Code § 946.6(f); see <i>Ard v. County of Contra Costa</i> (2001) 93 Cal.App.4th 339, 343.) Petitioner’s counsel is ordered to give notice of this ruling.
8.	<i>Abdalla vs. Valdez</i> 2023-01369966	Before the court is the motion to strike or tax costs filed by defendant OC Marketing Brands (Defendant) against plaintiff Sherif S. Abdalla (Plaintiff). As set forth more fully below, the motion is GRANTED IN PART and DENIED IN

PART. Costs shall be reduced by \$3,580 and the total amount awarded is \$42,175.28.

Allowable costs are set forth in Code of Civil Procedure section 1033.5, subdivision (a)(1), but recovery is limited to those costs which are reasonable in amount and reasonably necessary to the conduct of the litigation. (Code Civ. Proc. § 1033.5, subd. (c)(2) & (3).) A verified memorandum of costs constitutes prima facie evidence of the reasonable necessity of the costs claimed. Supporting documents must be submitted only if costs have been put in issue by a motion to tax costs. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) If the items on their face appear to be proper charges, the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (*Ladas v. Cal. State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776.) On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Id.* at pp. 774-776.) Determination of whether a cost is reasonable is a question of fact within the trial court's discretion. (*Id.* at p. 761.)

Defendant concedes Plaintiff is the prevailing party, but challenges the costs claimed by Plaintiff for depositions and models/enlargements/photocopies.

Item 4: Allocable costs include the "[t]aking, video recording, and transcribing necessary depositions including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed." (Code Civ. Proc., § 1033.5, subd. (a)(3)(A).) Plaintiff concedes the \$3,580 in costs related to expert witness fees are not recoverable and withdraws this amount.

Defendant challenges the deposition costs of transcribing and videotaping the depositions of Plaintiff's designated experts David Fractor, Roberto Contreras, and John Scolaro because they did not testify at trial nor were their deposition transcripts used at trial. (Motion at p. 9.) Plaintiff contends Dr. Scolaro did, in fact, testify at trial and the depositions of Dr. Fractor and Dr. Contreras were necessary. (Alder Decl. at ¶¶ 7, 8.) As pointed out by Plaintiff, the need for deposition for purposes of allowable costs is determined "from the pretrial vantage point of a litigant who does not yet know whether or not to oppose the expert's opinion." (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 132.) Because depositions costs are expressly allowable costs, it was Defendant's burden to

		show the costs were unnecessary (at the time of incurring the costs) or unreasonable in amount. (<i>Ibid.</i>) Defendant failed to do so here. Defendant also failed to meet its burden to show the costs for transcribing or videotaping the depositions of all other experts were unnecessary or unreasonable in amount. In the reply, Defendant argues Plaintiff failed to submit invoices for the costs to transcribe the depositions of Sheriff Abdalla, Mark Brigham, and Dominguez Valdez III. Defendant, however, did not challenge the necessity or reasonableness of these deposition costs in the moving papers – only those related to expert depositions. As such, these expressly allowable costs were never put in issue and Defendant failed to meet its moving burden. The motion is therefore GRANTED in the amount of \$3,580, but otherwise DENIED as to this item of costs. <u>Item 13:</u> Expenses for models, enlargements, photocopies and electronic presentation of exhibits, including costs of rental equipment and electronic formatting, that are “reasonably helpful to the trier of fact” are recoverable costs. (Code Civ. Proc., § 1033.5, subd. (a)(13); <i>Christler v. Express Messenger Systems, Inc.</i> (2009) 171 Cal.App.4th 72, 90-91; <i>Ripley v. Pappadopoulos</i> (1994) 23 Cal.App.4th 1616, 1623.) Defendant challenges \$8,514 of costs associated with “MediVisuals + High Impact – Medical Illustrations.” Plaintiff contends the medical illustrations prepared by MediVisuals + High Impact were displayed to the jury during trial on the direct examination of Plaintiff’s expert and in closing argument to summarize and illustrate the nature and extent of Plaintiff’s injuries. Defendant does not dispute this fact. Defendant failed to meet its burden the costs were unnecessary or unreasonable in amount. The motion is therefore DENIED as to this item. Accordingly, costs shall be reduced by \$3,580 and the total amount awarded is \$42,175.28. Counsel for Plaintiff shall give notice of this ruling.
9.	Ani vs. Fowler 2024-01420562	Before the court is the motion of plaintiff Jennifer Ani (Plaintiff) for an order taxing costs claimed by defendants Monica Liliana Aragon-Guzman, Kelly Reeves, and Paw Prints in the Sand (collectively, Defendants) in memorandum of costs they filed on March 17, 2026. As more fully set forth below, the motion is DENIED. Allowable costs are set forth in Code of Civil Procedure section 1033.5, subdivision (a)(1), but recovery is limited

		to those costs which are reasonable in amount and reasonably necessary to the conduct of the litigation. (Code Civ. Proc. § 1033.5, subd. (c)(2) & (3).) A verified memorandum of costs constitutes prima facie evidence of the reasonable necessity of the costs claimed. Supporting documents must be submitted only if costs have been put in issue by a motion to tax costs. (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1267.) If the items on their face appear to be proper charges, the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (<i>Ladas v. Cal. State Auto. Ass’n</i> (1993) 19 Cal.App.4th 761, 774-776.) On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (<i>Id.</i> at pp. 774-776.) Determination of whether a cost is reasonable is a question of fact within the trial court’s discretion. (<i>Id.</i> at p. 761.) Here, Defendants’ memorandum of costs claimed costs of \$3,445.54, consisting of \$1,805 in filing and motion fees, \$150 in jury fees, and \$1,491.54 in service of process fees. Plaintiff’s motion challenges only the \$1491.54 for service of process fees. Plaintiff contends only costs for serving the summons and complaint are recoverable and, as the responding parties in the actions, Defendants obviously did not incur such costs. Plaintiff contends the memorandum of costs indicates these costs were incurred in serving subpoenas and obtaining records from various medical providers and the City of Mission Viejo, which means that they are investigative costs and not recoverable. The costs of serving subpoenas and obtaining business records through subpoenas, however, are recoverable costs. Although case law recognizes they are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(3) as deposition costs rather than section 1033.5, subdivision (a)(4) as service of process costs, such costs nonetheless are recoverable. (<i>Naser v. Lakeridge Athletic Club</i> (2014) 227 Cal.App.4th 571, 576-578.) Other case law suggest they are recoverable as service of process costs. (See <i>Garcia v. Tempur-Pedic North America, LLC</i> (2024) 98 Cal.App.5th 819, 824-825.) Moreover, even if they were not recoverable as a matter of right, they would be recoverable in the costs discretion, and the court finds these costs to be reasonable and appropriate in this case.
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		Based on the foregoing, the motion is DENIED. Defendants are entitled to recover the full amount of costs sought in their memorandum of costs. As the prevailing parties, Defendants are ordered to give notice of this ruling.
10.	Rarz Yaron v. Sierra S. Conley 2026-01546480	CONTINUED TO DECEMBER 10,2026, at request of moving party.
11.	Contreras vs. Ace Restoration & Construction, Inc. 2022-01247671	Before the court is the motion of plaintiff Carla Contreras (Plaintiff) to enforce settlement agreement pursuant to Code of Civil Procedure section 664.6. Specifically, Plaintiff seeks an order enforcing the settlement agreement entered into between Plaintiff and defendants Ace Restoration & Construction, Inc., Cheree Nichelle Fay, and Shelby Lynn Cordova (collectively, Defendants) by entering judgment against Defendants and compelling them to execute valid and properly notarized documents including the required Deed of Trust, appointing an elisor to execute such documents if Defendants fail to comply, and awarding attorney fees and costs against Defendants. As more fully set forth below, the motion is GRANTED. During 2024 when the parties' entered into the settlement agreement and Plaintiff dismissed this action, Code of Civil Procedure section 664.6, subdivision (a), stated, "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." Here, Plaintiff has shown the parties entered into the settlement agreement and agreed it would be enforceable pursuant to section 664.6. Moreover, the parties stipulated and the court agreed to retain jurisdiction to enforce the agreement. Plaintiff also has shown Defendants breached the settlement agreement. Defendants have not filed any opposition to this motion. The court therefore finds Plaintiff satisfied the requirements of section 664.6 and Defendants breached the agreement warranting this motion to enforce the settlement. Based on the foregoing, the motion is GRANTED and the court will enter judgment against Defendants based on the

		parties' settlement agreement. Plaintiff's counsel is ordered to submit a proposed judgment for the court's signature. Notwithstanding the foregoing, Plaintiff's request for an award of attorney fees and costs is DENIED WITHOUT PREJUDICE. Although the parties' settlement agreement authorizes an award of attorney fees for enforcing its terms, the motion does not request any specific amount of attorney fees or costs nor does it provide any evidence to support an award in any particular amount, such as a declaration describing the work performed and hourly rates or billing statements. Plaintiff's counsel is ordered to give notice of this ruling.
12.	<i>Signature Collection Properties, LLC vs. Academy West Investments, LLC</i> 2021-01206266	CONTINUED to October 1, 2026, as stated in the court's August 17, 2026 Minute Order.
13.	<i>Hucek vs. FCA US, LLC</i> 2020-01147584	CONTINUED to October 1, 2026, as stated in the court's August 17, 2026 Minute Order.
14.	<i>Halabi vs. BMW of North America, LLC</i> 2025-01454261	CONTINUED to October 1, 2026, as stated in the court's August 17, 2026 Minute Order.
15.	<i>Igor Olenicoff as Trustee of the Olenicoff Personal Residence Trust vs. Emerald Bay Community Association</i> 2024-01448014	Before the court is the motion of defendants Charles Kinstler, Jr. and Lynda Kinstler as Trustees of the Kinstler Living Trust dated 9/6/1991 (collectively, Defendants) for an award of attorney fees. Initially, the court notes plaintiff Igor Olenicoff as Trustee of the Olenicoff Personal Residence Trust (Plaintiff) filed two versions of both his opposition to the motion and the declaration in support thereof. He filed a public version with redactions, and he purported to lodge an unredacted version of each document conditionally under seal pursuant to California Rules of Court 2.551(b)(3). No documents may be filed under seal without a court order. (Cal. Rules Ct., rule 2.551(a).) In general, any party seeking to file a document under seal must make a motion or application to seal the document. However,

when the document sought to be sealed is subject to a protective order or confidentiality agreement, a party may conditionally lodge a document and put the onus on any other party who may want the document sealed to seek a court order to seal the document. (Cal. Rules Ct., rule 2.551(b)(3).) That is what Plaintiff has done here.

Rule 2.551(b)(3)(B) requires any party who may want the document sealed to bring a motion to seal within 10 days of notice of the document being submitted. Here the public and sealed versions of the opposition and supporting declaration were filed and served on August 6, 2026. More than 10 days have elapsed since that date, and the court has not received any motion to seal from any interested party.

Accordingly, the court will hear from all interested parties at the hearing, but unless some legal and good cause is established at the time of the hearing, the court will order the redacted copies struck and the unredacted copies filed in the public register of actions.

By this motion, Defendants seek their attorney fees pursuant to Civil Code section 5975, subdivision (c), because the prior judicial officer sustained Defendants demurrer to the complaint without leave to amend and dismissed Plaintiff's claims against Defendants. Specifically, Defendants seek \$36,495 in attorney fees and \$2,546.06 in costs for a total award of \$39,041.06.

Civil Code section 5975, subdivision (c), provides, "In an action to enforce the governing documents, the prevailing party shall be awarded reasonable attorney's fees and costs." Civil Code section 4150 defines the term "governing documents" as "the declaration and any other documents, such as bylaws, operating rules, articles of incorporation, or articles of association, which govern the operation of the common interest development or association." The prevailing party is entitled to an award of attorney fees as a matter of right when the statutory conditions of section 5975, subdivision (c), are satisfied. (*Salehi v. Surfside III Condominium Owners Assn.* (2011) 200 Cal.App.4th 1146, 1152.) The trial court has no discretion to deny fees when those conditions are satisfied. (*Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 263 (*Rancho Mirage*).)

Neither the type of relief sought nor the form of the action determines whether a case is "an action to enforce the

governing documents.” (*Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1380.) Rather, the court must look to the gist or gravamen of the action to make that determination. (*Kaplan v. Fairway Oaks Homeowners Ass’n.* (2002) 98 Cal.App.4th 715, 720 (*Kaplan*); *Rancho Mirage, supra*, 2 Cal.App.5th at p. 259.)

For example, in *Kaplan*, our Court of Appeal found an action brought under Corporations Code section 7616 to enforce proxy and cumulative voting rights regarding an election of homeowner association board members was an action to enforce the governing documents even though there was no specific claim for breach of or relief under the governing documents. The *Kaplan* court explained Corporations Code section 7616 was merely a procedural vehicle for challenging the election, but it did not create any substantive rights. Indeed, all the rights relating to the use of proxies and other election issues were created and established by the homeowner association’s bylaws. (*Kaplan, supra*, 98 Cal.App.4th at p. 719.) As such, the gist of the action was to enforce the members’ proxy and cumulative voting rights under the bylaws and the prevailing party was entitled to attorney fees. (*Id.* at p. 720.)

Rancho Mirage also is an important case for deciding this motion. There a dispute had arisen between a homeowner and the association regarding potential violations of the governing CC&Rs. As required by the Davis-Stirling Act Common Interest Development Act, the parties went to mediation before filing any lawsuit. At that mediation, they were able to resolve their dispute and entered into a settlement agreement setting forth the terms of the resolution they reached. When the homeowner failed to perform the obligations agreed to in the settlement agreement, the association filed a lawsuit for breach of the settlement agreement seeking to enforce the parties’ agreement. No claim was made directly under the CC&Rs. When the lawsuit was resolved to the association’s satisfaction, it sought its attorney fees under section 5975, subdivision (c). (*Rancho Mirage, supra*, 2 Cal.App.5th at pp. 255-256.)

The question presented was whether the action was one to enforce the governing documents even though it was nominally an action to enforce the settlement agreement the parties reached in mediation. (*Rancho Mirage, supra*, 2 Cal.App.5th at p. 258.) The *Rancho Mirage* court concluded section 5975, subdivision (c), applied and the association was entitled to its attorney fees. The court

	explained, “the gravamen of the Association's complaint is that defendants have not taken certain steps to bring their property into compliance with the applicable CC & Rs. The relief sought by the complaint is an order requiring defendants to take those steps, and a declaration of the parties' respective rights and responsibilities. The circumstance that the steps to bring the property into compliance with CC & Rs were specified in a mediation agreement does not change the underlying nature of the dispute between the parties, or the nature of the relief sought by the Association. Indeed, the parties' agreement was the product of a mediation conducted explicitly pursuant to the ADR requirements of the Davis–Stirling Act. We see nothing in the Davis–Stirling Act that suggests we should give more weight to the form of a complaint—its framing as an action to enforce a mediation agreement—than to the substance of the claims asserted and relief sought, in determining whether an action is one ‘to enforce the governing documents’ in the meaning of section 5975.” (<i>Rancho Mirage, supra</i>, 2 Cal.App.5th at pp. 259-260.) Plaintiff’s complaint named both Defendants and the homeowners association—i.e., the Emerald Bay Community Association (Association)—as defendants in the case. The majority of the claims were alleged against the Association, including the second cause of action for breach of contractual duties under CC&Rs. The claims alleged against Defendants were the fourth cause of action for breach of the Tri-Party Settlement Agreement, sixth cause of action for declaratory relief, and seventh cause of action for nuisance. As Plaintiff alleges, a dispute arose between Defendants and the Association that lead to a 2017 lawsuit between Defendants and the Association seeking declaratory relief regarding the rights and duties under the governing CC&Rs and the Association’s Architectural Regulations. Plaintiff intervened in that lawsuit which involved, inter alia, permissible height of trees and construction on Defendants’ property under the CC&Rs and other governing documents. (Comp. at ¶¶ 13-14.) Plaintiff, Defendants, and the Association settled that earlier lawsuit and that settlement was set forth in the Tri-Party Settlement Agreement. Among other things, that agreement addressed the permissible heights of trees on Defendants’ property and views. Plaintiffs allege Defendants breached both the CC&Rs and the Tri-Party
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		Settlement Agreement by allowing the trees to obstruct Plaintiff's view. (Comp. at ¶¶16-17.) Accordingly, although Plaintiff alleges a claim against Defendants for breach of the Tri-Party Settlement Agreement instead of the CC&Rs, this is nonetheless an action to enforce the governing documents, at least in part, much like in <i>Rancho Mirage</i>. The parties' agreement here was reached during litigation rather than mediation, but that does not change the analysis. At the end of the day, Plaintiff's claim seeks to enforce the governing documents as well as the additional matters agreed to in the Tri-Party Settlement Agreement. Indeed, Plaintiff's complaint is replete with references to the CC&Rs and its standards as well as Defendants' failure to satisfy those standards (and additional matters the parties agreed to in their agreement). For similar reasons, the declaratory relief claim is an action to enforce the governing documents because it seeks a declaration regarding the Tri-Party Settlement Agreement. Finally, the nuisance claim is an action to enforce the governing documents because it alleges Defendants purported violations of the CC&Rs constitute a nuisance which the CC&Rs allow Plaintiff to seek damages for and enjoin. Accordingly, although it would be sufficient if even one claim was an action to enforce the governing documents, the court finds all three claims constitute actions to enforce the governing documents under section 5975, subdivision (c). The other condition for an award of attorney fees under the statute is that the requesting party must be the prevailing party. The Davis-Sterling Act does not define "prevailing party," but the analysis of who is a prevailing party under the Act's fee-shifting provisions focuses on who prevailed "on a practical level" by achieving its main litigation objectives. (<i>Champir, LLC v. Fairbanks Ranch Ass'n</i>. (2021) 66 Cal.App.5th 583, 590; see also <i>Villa De Las Palmas Homeowners Assn. v. Terifaj</i> (2004) 33 Cal.4th 73, 94.) The prevailing party determination is made by "a comparison to the extent to which each party ha[s] succeeded and failed to succeed in its contentions." (<i>Almanor Lakeside Villas Owners Assn. v. Carson</i> (2016) 246 Cal.App.4th 761, 774.) Defeating a party's claims by having a demurrer sustained is sufficient to make the demurring party a prevailing party. (<i>Haidet v. Del Mar</i>
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	<i>Woods Homeowners Ass’n</i>. (2024) 106 Cal.App.5th 530, 540.) Plaintiff argues it is “premature” to decide who is the prevailing party because the dispute is apparently still awaiting determination on the merits in the original action filed in 2017, another action filed 2020, and a third action Defendants filed. Plaintiff also argues the demurrer in this action was sustained based on procedural grounds. This argument is unpersuasive. Defendants have achieved their litigation objective to be dismissed from this action and are entitled to the fees they incurred in this action. None of these cases have been consolidated and the prior judicial officer found it was improper to bring this separate lawsuit and so the outcome of those case does not alter Defendants’ prevailing party status in this case. None of the cases Plaintiffs cite apply to the facts and circumstances of this case. Based on the foregoing, the court finds Defendants are entitled to recovery their attorney fees under section 5975, subdivision (c). The question then becomes the amount. Generally, courts employ the lodestar method to determine if attorney fees are reasonable, which involves multiplying the reasonable rate of services by the number of hours reasonably spent on the case. (<i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1242.) A “reasonable” hourly rate used to calculate the lodestar is the prevailing rate for similar work in the community where the court is located. (<i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 695-696.) Defendants seek the hourly rate of \$450 for senior attorneys, which appears reasonable. Plaintiff does not dispute the reasonableness of the hourly rate. Defendants seek 84.9 hours in litigating this case. A review of the billing records show time spent on the demurrer, motion to strike, Plaintiff’s motion to consolidate, CMC, as well as depositions/discovery. (ROA 153 - Declaration of Kevin J. Price, Ex. 3.) Plaintiff argues the time billed is derived in part from other litigation matters involving the same parties. That appears true for time spent on depositions, written discovery, and an informal discovery conference. Defendants concede the depositions occurred in the 2020 Action, but counsel apparently attended the deposition of Association board member William Stoffregen while the demurrer and motion to strike were pending in this action, in case the testimony
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		might be relevant. Counsel, however, does not state they were an active participant in the deposition – it is unclear why attendance was required and/or why deposition transcripts would not suffice and why these fees are not more appropriately sought in the other cases. Indeed, it appears the deposition might be more relevant to the other cases. The bills include time to prepare notices of deposition and review documents and discovery responses. But there is no evidence the parties were exchanging discovery in this action. Accordingly, the court finds it is appropriate to reduce all time spent on discovery and depositions from August 8, 2025, to October 17, 2025 (20.2 hours) and the 0.20 entry on October 29, 2025, for a total of 20.4 hours. With regard to consolidation, Plaintiff filed the motion in the 2020 Action, not this action. Although it appears parties to all actions met and conferred regarding a proposed stipulation, and counsel prepared the opposition to the motion to consolidate, it appears counsel did so for purposes of both this action and the other actions. Indeed, time entries include time spent on “stipulations to continue trial, consolidate cases” even though no trial date was ever scheduled in this case. The court finds it appropriate to reduce the 14.1 hours of time spent on “consolidation” by half to 7 hours. Plaintiff contends the 1.7 hours of time spent preparing the CMC statement in May 2025 is excessive. The court agrees and reduces this amount by 1.2 hours. Finally, Plaintiff contends Defendants failed to apportion the recoverable attorney fees from nonrecoverable attorney fees. When a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, attorney fees are only recoverable on the statutory cause of action. (<i>Akins v. Enterprise Rent-A-Car Co. of San Francisco</i> (2000) 79 Cal.App.4th 1127, 1133-1134.) This generally requires the trial court to apportion the fees so that the losing party is only required to pay for such fees as were incurred in prosecuting or defending the statutory action. (<i>Bell v. Vista Unified School Dist.</i> (2000) 82 Cal.App.4th 672, 687.) “[S]uch fees need not be apportioned[, however,] when incurred for representation of an issue common to both a cause of action for which fees are permitted and one for which they are not. All expenses incurred on the common issues qualify for an award.” (<i>Akins, supra</i>, 79 Cal.App.4th at p. 1133.)
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		Here, Defendants made multiple arguments in the demurrer, including that each cause of action fails to state sufficient facts and is barred by the sham pleading doctrine. (ROA 41.) The court sustained the demurrer, finding the complaint was a sham pleading used to circumvent the court's ruling on the motion for leave to amend in the 2020 Action. (ROA 187 – Declaration of Julie A. Ault, Ex. 3.) Accordingly, the court finds apportionment is not necessary or appropriate because the sham pleading doctrine applied to all the claims, i.e., the issue is common to all causes of action. In sum, the Court reduces the hours to 56.3 (i.e., 84.9 minus 20.4, 7 and 1.2). The lodestar is therefore \$25,335. That leaves just the \$2,546.06 in costs Defendants seek. The costs are related to filing fees, court fees, service, and deposition costs. Although Plaintiff argues Defendants failed to timely file a memorandum of costs such that all costs should be denied, Civil Code section 5975 independent allows the prevailing party to be awarded "reasonable attorney's fees and costs," independent of costs allowed under Code of Civil Procedure section 1033.5. (<i>Anthony v. City of Los Angeles</i> (2008) 166 Cal.App.4th 1011, 1015 [a memorandum of costs under Cal. Rules of Court, rule 3.1700 only applies to items "allowable as costs" that are listed in Code of Civ. Proc. § 1033.5, subd. (a)].) Nonetheless, the court denies costs of \$1,369.15 related to depositions for the reasons set forth above, and therefore awards costs in the amount of \$1,176.91. Based on the foregoing, the motion is GRANTED and Defendants are awarded \$25,335 in attorney fees and \$1,176.91 in costs for a total award of \$26,511.91. Defendants' counsel is ordered to give notice of this ruling.
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